

7.1.5 Powers of Officers of Customs

An officer may stop, board, and search any conveyance and examine goods on board a conveyance:

- a) Entering or that has entered the State.
- b) That is leaving the State.
- c) In the contiguous zone of the State.
- d) At any other place in the State.

Paragraphs (a), (b) and (d) above, shall only be exercised for Intra Community traffic where the officer has reasonable grounds to suspect that the conveyance or any goods carried on or in it are:

- (i) Chargeable with a duty of customs which has not been paid or secured,
- (ii) Being or have been imported, or are intended to be exported, contrary to any Prohibition or restriction on their importation or exportation, as the case may be,
- (iii) Records relating to transactions in contravention of the Customs Act, or
- (iv) Otherwise liable to forfeiture under the Customs Acts.

(Sections 26, 27 and 28 of the Customs Act, 2015 refer)

Section 25 of the Customs Act, 2015 further provides that officers have the right to access a customs port or customs airport, or any place approved under section 7(1) or section 13(2), or any conveyance within such port, airport or place.

7.1.6 Export of goods

The provisions of the Customs Act apply to goods exported in aircraft and to persons exporting them. Section 17 of the Customs Act, 2015 provides for the forfeiture of prohibited or restricted goods on export.

7.1.7 Authorised agents

An “authorised agent” means a person who represents an airline, aircraft owner or aircraft operator and who is authorised by them to act on all matters pertaining to clearance of its aircraft, crew, passengers, cargo, or stores. In the case of airline companies, owners or operators, whose headquarters are outside Ireland, customs may require such agents to produce evidence of his powers to act as an agent. (See [Civil Aviation Manual](#))

7.2 Intra-Union flights and traffic

7.2.1 Law

Section 10(2) of the Customs Act 2015 provides that a pilot in command of an aircraft departing the State, unless otherwise authorised or exempted, shall not cause or permit it to depart from any place other than a customs airport.